

Data Processing Addendum

SwarmReply LLC — Processor Terms

This Data Processing Addendum (this “DPA”) forms part of, and is incorporated into, the master services agreement, subscription agreement, terms of service, or other written or electronic agreement between SwarmReply LLC (“SwarmReply,” “we,” or the “Processor”) and the customer identified in that agreement (the “Customer,” “you,” or the “Controller”) governing Customer’s use of the SwarmReply services (the “Agreement”). This DPA reflects the parties’ agreement regarding the Processing of Personal Data in connection with the Services and is effective as of the effective date of the Agreement or, if later, the date this DPA is last signed below (the “Effective Date”).

Capitalized terms used but not defined in this DPA have the meanings given in the Agreement. In the event of any conflict between this DPA and the Agreement with respect to the Processing of Personal Data, this DPA controls.

By signing this DPA, or by accepting the Agreement where the Agreement incorporates this DPA by reference, each party agrees to the terms below.

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1. Definitions

In this DPA, the following terms have the meanings set out below. Terms such as “Controller,” “Processor,” “Data Subject,” “Personal Data,” “Processing,” “Special Categories of Personal Data,” and “Supervisory Authority” have the meanings given in the GDPR; their equivalents under other Data Protection Laws (including the CCPA terms “Business,” “Service Provider,” “Contractor,” “Consumer,” and “Personal Information”) apply where those laws govern.

“Affiliate” means any entity that controls, is controlled by, or is under common control with a party, where “control” means ownership of more than 50% of the voting interests of the subject entity.

“CCPA” means the California Consumer Privacy Act of 2018, as amended by the California Privacy Rights Act of 2020, together with its implementing regulations.

“Data Protection Laws” means all laws and regulations applicable to the Processing of Personal Data under the Agreement, including, as applicable, the EU GDPR, the UK GDPR, the Swiss Federal Act on Data Protection (“FADP”), and the CCPA, in each case as amended, superseded, or replaced from time to time.

“Data Subject Request” or “DSR” means a request from a Data Subject (or, under the CCPA, a Consumer) to exercise rights under Data Protection Laws, including rights of access, rectification, correction, erasure or deletion, restriction, data portability, objection, and the right to opt out of the sale or sharing of, or to limit the use of, Personal Data.

“EEA” means the European Economic Area.

“EU GDPR” or “GDPR” means Regulation (EU) 2016/679 of the European Parliament and of the Council on the protection of natural persons with regard to the Processing of personal data and on the free movement of such data.

“Customer Personal Data” means Personal Data that SwarmReply Processes on behalf of Customer in the course of providing the Services, as further described in Annex I.

“Personal Data Breach” or “Security Incident” means a breach of security leading to the accidental or unlawful destruction, loss, alteration, or unauthorized disclosure of, or access to, Customer Personal Data transmitted, stored, or otherwise Processed. It does not include unsuccessful attempts or activities that do not compromise the security of Personal Data, such as pings, port scans, denied log-in attempts, or similar events.

“Restricted Transfer” means a transfer (or onward transfer) of Personal Data from the EEA, the United Kingdom, or Switzerland to a country that has not received an adequacy decision from the relevant authority, where such transfer would be prohibited absent an appropriate transfer mechanism under Data Protection Laws.

“Services” means the products and services SwarmReply provides to Customer under the Agreement, which provide AI-assisted customer review generation and management, multi-channel customer messaging automation, reputation monitoring, and related analytics and support.

“Standard Contractual Clauses” or “SCCs” means the standard contractual clauses for the transfer of personal data to third countries annexed to European Commission Implementing Decision (EU) 2021/914 of 4 June 2021, as amended or replaced.

“Sub-processor” means any third party (including any SwarmReply Affiliate) engaged by SwarmReply to Process Customer Personal Data in connection with the Services.

“UK Addendum” means the International Data Transfer Addendum to the EU Standard Contractual Clauses issued by the UK Information Commissioner under section 119A of the Data Protection Act 2018, as amended or replaced.

“UK GDPR” means the EU GDPR as it forms part of the law of England and Wales, Scotland, and Northern Ireland by virtue of the European Union (Withdrawal) Act 2018, together with the Data Protection Act 2018.

2. Roles of the Parties and Scope of Processing

2.1 Roles. For Customer Personal Data Processed under the Agreement, Customer is the Controller and SwarmReply is the Processor. Where Customer is itself a Processor acting on behalf of a third-party controller, SwarmReply is a Sub-processor; in that case Customer warrants that it is authorized to instruct SwarmReply on that controller’s behalf, and the parties’ Processing is governed accordingly (including, for Restricted Transfers, Module Three of the SCCs).

2.2 Customer responsibilities. Customer is responsible for the accuracy, quality, and legality of Customer Personal Data and for the means by which Customer acquired it. Customer warrants that it has, and will maintain throughout the term, a valid legal basis for the Processing and has provided all notices and obtained all consents required under Data Protection Laws for SwarmReply and its Sub-processors to Process Customer Personal Data as contemplated by the Agreement and this DPA.

2.3 Documented instructions. SwarmReply will Process Customer Personal Data only on Customer’s documented instructions, including with regard to transfers of Customer Personal Data to a third country, unless required to do otherwise by applicable law to which SwarmReply is subject; in such a case, SwarmReply will inform Customer of that legal requirement before Processing, unless that law prohibits such notice on important grounds of public interest. The Agreement, this DPA, and Customer’s configuration and use of the Services (including any settings selected by Customer) constitute Customer’s complete and final documented instructions for the Processing. Any additional or different instructions must be agreed in writing and may be subject to additional fees.

2.4 Lawfulness of instructions. SwarmReply will inform Customer if, in its opinion, an instruction infringes Data Protection Laws, provided that SwarmReply has no obligation to monitor Customer’s compliance and provides no legal advice. SwarmReply may suspend Processing of an instruction it reasonably believes to be unlawful until the instruction is confirmed, modified, or withdrawn.

2.5 Details of Processing. The subject matter, duration, nature and purpose of the Processing, the categories of Personal Data, and the categories of Data Subjects are described in Annex I.

2.6 Special Categories. The Services are not intended for the Processing of Special Categories of Personal Data. Customer will not submit, and will use reasonable measures to prevent the submission of, Special Categories of Personal Data through the Services except where expressly agreed in writing and supported by appropriate safeguards.

3. Cross-Border Data Transfers

3.1 Processing locations. SwarmReply and its Sub-processors may Process Customer Personal Data in the United States and in other countries in which SwarmReply or its Sub-processors maintain operations, as identified in Annex III or as notified to Customer.

3.2 Transfer mechanism. To the extent SwarmReply's Processing of Customer Personal Data involves a Restricted Transfer, the parties agree that the following appropriate transfer mechanisms apply, and the relevant mechanism is incorporated into this DPA by this reference and takes effect automatically upon commencement of the Restricted Transfer:

- (a) EEA transfers. The EU SCCs apply. Where Customer is a Controller, Module Two (Controller to Processor) applies; where Customer is a Processor acting on behalf of a third-party controller, Module Three (Processor to Processor) applies. Customer is the "data exporter" and SwarmReply is the "data importer."
- (b) UK transfers. The UK Addendum applies to transfers subject to the UK GDPR, amending and incorporating the EU SCCs as set out in the UK Addendum.
- (c) Swiss transfers. The EU SCCs apply to transfers subject to the FADP, with the following adaptations: references to the GDPR are read as references to the FADP; the competent supervisory authority is the Swiss Federal Data Protection and Information Commissioner; the term "member state" must not be interpreted to exclude Data Subjects in Switzerland from enforcing their rights in their place of habitual residence; and, until the revised FADP's entry into force is fully reflected, the SCCs also protect the data of legal entities to the extent required.
- (d) Alternative mechanisms. Where SwarmReply or the relevant Sub-processor is certified under, or the transfer is otherwise covered by, the EU–U.S. Data Privacy Framework (and the UK Extension and Swiss–U.S. framework, as applicable) or any successor adequacy mechanism, that mechanism may be relied upon for the relevant transfer in place of the SCCs.

3.3 Operative provisions of the SCCs. For the purposes of the SCCs and UK Addendum:

- (a) the optional docking clause (Clause 7) applies;
- (b) in Clause 9, Option 2 (general written authorization) applies, with the minimum notice period for changes to Sub-processors set out in Section 5.2;
- (c) the optional independent dispute-resolution language in Clause 11(a) does not apply;
- (d) in Clause 17, the SCCs are governed by the law of [Ireland] [insert EEA member state]; in Clause 18, disputes are resolved before the courts of [Ireland] [insert EEA member state];

- (e) Annexes I, II, and III to the SCCs are populated by Annex I and Annex II to this DPA and by the Sub-processor list referenced in Annex III; and
- (f) for the UK Addendum: Table 1 is completed by the parties' details in Annex I; Table 2 selects the approved EU SCCs and Modules referenced above; Table 3 is completed by the Annexes to this DPA; and in Table 4, the data importer may end the UK Addendum as set out in Section 19 of the UK Addendum.

3.4 Order of precedence for transfers. In the event of any conflict between this DPA and the SCCs or UK Addendum with respect to a Restricted Transfer, the SCCs or UK Addendum (as applicable) prevail.

4. Security Measures and Audits

4.1 Technical and organizational measures. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the Processing, as well as the risk to Data Subjects, SwarmReply will implement and maintain appropriate technical and organizational measures designed to ensure a level of security appropriate to that risk, as further described in Annex II. SwarmReply may update or modify these measures from time to time, provided that such updates do not materially reduce the overall level of security of the Services.

4.2 Confidentiality of personnel. SwarmReply will ensure that personnel authorized to Process Customer Personal Data are subject to appropriate confidentiality obligations (whether contractual or statutory) and have received appropriate training on their data protection responsibilities.

4.3 Demonstrating compliance and audits. Upon Customer's reasonable written request, and no more than once in any twelve-month period (except where required by a Supervisory Authority or following a Personal Data Breach affecting Customer Personal Data), SwarmReply will make available information reasonably necessary to demonstrate compliance with this DPA. SwarmReply may satisfy this obligation by providing its then-current third-party audit reports or certifications (such as SOC 2 Type II or ISO/IEC 27001), to the extent available. Where such reports are reasonably insufficient to demonstrate compliance, SwarmReply will allow for and contribute to an audit conducted by Customer or an independent auditor mandated by Customer (and not a competitor of SwarmReply), subject to the following: the audit is conducted on at least thirty (30) days' prior written notice; during regular business hours; subject to confidentiality obligations; in a manner that does not materially disrupt SwarmReply's operations or compromise the security or privacy of other customers' data; and at Customer's sole expense.

5. Sub-processors

5.1 General authorization. Customer provides SwarmReply with general written authorization to engage Sub-processors to Process Customer Personal Data, subject to this Section 5. A current list of Sub-processors is available to Customer on request and/or at the location identified in Annex III.

5.2 Notice of changes. SwarmReply will provide Customer with at least thirty (30) days' prior notice of the addition or replacement of any Sub-processor that Processes Customer Personal

Data, by the mechanism described in Annex III (which may include email notification or an option to subscribe to updates), thereby giving Customer the opportunity to object.

5.3 Right to object. Customer may object in writing to a new Sub-processor on reasonable, documented grounds relating to data protection within the notice period. The parties will work together in good faith to resolve the objection. If the objection cannot be reasonably resolved, Customer may, as its sole and exclusive remedy, terminate the affected portion of the Services by providing written notice to SwarmReply, with a pro-rata refund of any prepaid fees for the terminated Services covering the period after termination.

5.4 Sub-processor obligations and liability. SwarmReply will enter into a written agreement with each Sub-processor imposing data protection obligations that are no less protective than those in this DPA, to the extent applicable to the nature of the Sub-processor's services. SwarmReply remains fully liable to Customer for the performance of each Sub-processor's obligations.

6. Data Subject Rights and Cooperation

6.1 Assistance with Data Subject Requests. Taking into account the nature of the Processing, SwarmReply will assist Customer by appropriate technical and organizational measures, and through the self-service functionality of the Services, insofar as this is possible, to enable Customer to fulfill its obligation to respond to Data Subject Requests under Data Protection Laws.

6.2 Requests received directly. If SwarmReply receives a Data Subject Request directly from a Data Subject relating to Customer Personal Data, SwarmReply will not respond to the request except on Customer's documented instructions or as required by applicable law, and will, where legally permitted, promptly inform the Data Subject to direct the request to Customer and notify Customer of the request.

6.3 Data protection impact assessments. Taking into account the nature of the Processing and the information available to SwarmReply, SwarmReply will provide Customer with reasonable assistance with data protection impact assessments and prior consultations with Supervisory Authorities that Customer reasonably considers required under Articles 35 and 36 of the GDPR (or equivalent provisions of other Data Protection Laws).

6.4 Costs of assistance. Assistance available through the standard functionality of the Services is provided at no additional charge. For other assistance under this Section 6 or under Sections 4 and 7, SwarmReply may charge a reasonable fee based on its costs, except to the extent Data Protection Laws prohibit such a charge.

7. Personal Data Breach Notification

7.1 Notification. SwarmReply will notify Customer without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a confirmed Personal Data Breach affecting Customer Personal Data.

7.2 Contents of notification. The notification will describe, to the extent then known to SwarmReply and to the extent such information is within SwarmReply's possession or control:

- (a) the nature of the Personal Data Breach, including, where possible, the categories and approximate number of Data Subjects and Personal Data records concerned;
- (b) the likely consequences of the Personal Data Breach;
- (c) the measures taken or proposed to be taken to address the Personal Data Breach, including, where appropriate, measures to mitigate its possible adverse effects; and
- (d) a point of contact from whom further information may be obtained.

7.3 Phased information and cooperation. Where, and insofar as, it is not possible to provide the information at the same time, the information may be provided in phases without undue further delay. SwarmReply will take reasonable steps to investigate, contain, and mitigate the Personal Data Breach and will cooperate with Customer and provide reasonable assistance in connection with Customer's obligations to notify Supervisory Authorities and affected Data Subjects.

7.4 No acknowledgment of fault. SwarmReply's notification of or response to a Personal Data Breach under this Section 7 is not and will not be construed as an acknowledgment by SwarmReply of any fault or liability with respect to the Personal Data Breach.

8. Return or Deletion of Personal Data

8.1 Return or deletion. Upon termination or expiry of the Agreement, SwarmReply will, at Customer's election, delete or return Customer Personal Data and delete existing copies, within sixty (60) days, unless and to the extent applicable law requires storage of the Personal Data. During the term and for any post-termination period stated in the Agreement, Customer may use the functionality of the Services to retrieve or export Customer Personal Data. If Customer does not make an election within thirty (30) days of termination or expiry, SwarmReply may delete Customer Personal Data in accordance with this Section.

8.2 Legally required retention. Where SwarmReply is required by applicable law to retain some or all Customer Personal Data, SwarmReply will isolate and protect that Personal Data from any further Processing except to the extent required by that law, until deletion is permitted.

8.3 Backups. Customer Personal Data residing in SwarmReply's routine, encrypted backups is deleted in the ordinary course in accordance with SwarmReply's backup retention schedule.

8.4 Certification. Upon Customer's written request, SwarmReply will provide written certification of the deletion of Customer Personal Data carried out in accordance with this Section 8.

9. CCPA / CPRA Specific Terms

9.1 Roles under the CCPA. To the extent SwarmReply Processes Personal Information of California residents on behalf of Customer in providing the Services, Customer is a "Business" and SwarmReply is a "Service Provider" (or, where applicable, a "Contractor"), and the Personal Information is disclosed to SwarmReply solely for the limited and specified business purpose of performing the Services.

9.2 Restrictions on use. SwarmReply will not:

- (a) sell or share (as those terms are defined in the CCPA) Personal Information;

- (b) retain, use, or disclose Personal Information for any purpose other than for the specific business purpose of performing the Services, or as otherwise permitted by the CCPA;
- (c) retain, use, or disclose Personal Information outside the direct business relationship between SwarmReply and Customer; or
- (d) combine the Personal Information with Personal Information that SwarmReply receives from, or on behalf of, any other person, or collects from its own interaction with the Consumer, except as permitted by the CCPA.

9.3 Certification. SwarmReply certifies that it understands the restrictions in this Section 9 and the CCPA and will comply with them.

9.4 Notice of inability to comply. SwarmReply will notify Customer if it makes a determination that it can no longer meet its obligations under the CCPA. Upon such notice, or where Customer reasonably believes SwarmReply is engaged in unauthorized use of Personal Information, Customer may take reasonable and appropriate steps to stop and remediate the unauthorized use.

9.5 Consumer requests. SwarmReply will provide Customer with reasonable assistance, as described in Section 6, in responding to verifiable Consumer requests under the CCPA.

9.6 Deidentified data. Where SwarmReply receives or generates deidentified data, SwarmReply will take reasonable measures to ensure the information cannot be associated with a Consumer or household, will publicly commit to maintaining and using the information in deidentified form, will not attempt to reidentify the information except as permitted by the CCPA, and will contractually obligate any recipients to comply with the same.

10. General Provisions

10.1 Liability. Each party's liability arising out of or related to this DPA, whether in contract, tort, or otherwise, is subject to the limitations and exclusions of liability set out in the Agreement, and any reference in the Agreement to the liability of a party means the aggregate liability of that party and its Affiliates under the Agreement and this DPA together. This Section does not limit any liability that cannot be limited under Data Protection Laws (including, where the SCCs apply, liability to Data Subjects under the third-party beneficiary provisions of the SCCs).

10.2 Order of precedence. In the event of any conflict or inconsistency, the following order of precedence applies, with respect to the subject matter of data protection: (i) the SCCs and UK Addendum; (ii) this DPA; and (iii) the Agreement.

10.3 Affiliates. Customer enters into this DPA on behalf of itself and, to the extent required under Data Protection Laws, in the name and on behalf of its Affiliates that are permitted to use the Services under the Agreement, in which case each such Affiliate is deemed a "Customer." Customer remains responsible for coordinating all communications with SwarmReply under this DPA and for the acts and omissions of its Affiliates.

10.4 Changes in law. If a change in Data Protection Laws, or guidance or a decision of a Supervisory Authority or court, prevents either party from fulfilling all or part of its obligations under

this DPA, the parties will negotiate in good faith to make any amendments reasonably necessary to address the change while preserving the commercial balance of the Agreement.

10.5 Severability and survival. If any provision of this DPA is held invalid or unenforceable, the remaining provisions remain in full force and effect. The obligations in this DPA survive for as long as SwarmReply Processes Customer Personal Data.

10.6 Governing law and term. Except as otherwise required by the SCCs, this DPA is governed by the governing law of the Agreement and is effective for the duration of the Agreement and for as long thereafter as SwarmReply Processes Customer Personal Data.

Agreed and accepted by the parties as of the Effective Date.

CUSTOMER (Controller)**SWARMREPLY LLC (Processor)**

Signature

Name: []
Title: []
Entity: []
Date: []

Signature

Name: []
Title: []
Entity: SwarmReply LLC
Date: []

Annex I

Details of Processing / SCC Annex I

A. List of the Parties

	Details
Data exporter (Controller)	Name: [Customer legal entity name] Address: [Customer address] Contact / DPO: [name, role, email] Activities relevant to the transfer: receipt of the Services as described in the Agreement. Role: Controller (or Processor, where acting for a third-party controller).
Data importer (Processor)	Name: SwarmReply LLC Address: [SwarmReply registered address] Contact: [privacy contact name / email, e.g., privacy@swarmreply.com] Activities relevant to the transfer: provision of the Services as described in the Agreement. Role: Processor.

B. Description of the Transfer

Categories of Data Subjects: Customer's own customers, clients, and prospective customers who receive review requests or messages; individuals who submit reviews, ratings, survey responses, or other feedback; Customer's personnel and other authorized users who access the Services; and individuals whose Personal Data is imported into the Services from connected third-party platforms (for example, field-service management, scheduling, CRM, or accounting systems).

Categories of Personal Data: Identifiers (such as name); contact details (such as email address, mobile or other telephone number, and postal address); customer communication content and metadata (such as the content of SMS and email messages, timestamps, and delivery, open, click, and response status); review, rating, survey, and feedback content; appointment, job, and transaction details imported from connected systems; account, profile, and authentication data for authorized users; technical and usage data (such as IP address, device and browser identifiers, and log data); and any other Personal Data that Customer elects to submit to or generate through the Services.

Special Categories of Personal Data: None intended or required. Customer is instructed not to submit Special Categories of Personal Data through the Services except as expressly agreed in writing with appropriate safeguards.

Frequency of the transfer: Continuous, for the duration of the Agreement.

Nature and purpose of the Processing: Collection, recording, organization, structuring, storage, retrieval, use, transmission, and erasure of Personal Data as necessary to provide the

Services, including soliciting, collecting, and displaying customer reviews; automated and AI-assisted generation of messages and review responses; multi-channel customer messaging (SMS and email); reputation monitoring; analytics and reporting; and customer support.

Duration of the Processing: For the term of the Agreement, followed by return or deletion in accordance with Section 8 of this DPA, subject to any legally required retention.

Sub-processor Processing: The subject matter, nature, and duration of any Sub-processor Processing correspond to those described above and are limited to what is necessary to provide the Services.

C. Competent Supervisory Authority

Where the EU SCCs apply, the competent Supervisory Authority is [the Supervisory Authority of the EEA member state in which Customer's EU representative is established, or otherwise determined in accordance with Clause 13 of the SCCs]. Where the UK Addendum applies, the competent authority is the UK Information Commissioner's Office. Where Swiss transfers are involved, the competent authority is the Swiss Federal Data Protection and Information Commissioner.

Annex II

Technical and Organizational Security Measures

SwarmReply maintains the technical and organizational measures described below. These measures are reviewed and updated periodically; SwarmReply may modify them provided the overall level of security is not materially reduced. [Customer to confirm these measures match SwarmReply's actual current practices before use; remove any measure not yet implemented.]

Domain	Measures
Encryption	Encryption of Personal Data in transit over public networks using TLS, and encryption of Personal Data at rest using industry-standard algorithms.
Access control	Role-based access control and least-privilege access to systems Processing Personal Data; unique user accounts; multi-factor authentication for administrative and remote access; and timely revocation of access on role changes or departures.
Authentication & secrets	Centralized management of credentials and secrets; prohibition on hardcoded credentials in source code; and secure storage of keys and tokens.
Logging & monitoring	Logging of access to and material actions on production systems; monitoring and alerting designed to detect anomalous or unauthorized activity.
Network & infrastructure	Use of reputable cloud infrastructure providers; network segmentation and firewalling; and restriction of administrative interfaces.
Tenant separation	Logical separation of each customer's data within multi-tenant systems to prevent unauthorized access between customers.
Secure development	A secure software development lifecycle, including code review and dependency and vulnerability management; separation of development, staging, and production environments.
Vulnerability & patch management	Periodic vulnerability assessment and timely application of security patches to systems Processing Personal Data, prioritized by risk.
Resilience & backup	Encrypted, access-controlled backups; and measures designed to restore availability of and access to Personal Data in a timely manner after an incident.
Incident response	A documented incident response process covering identification, containment, mitigation, notification, and remediation of Security Incidents.
Personnel	Confidentiality obligations for personnel and periodic data protection and security awareness training.

Domain	Measures
Sub-processor management	Due diligence on Sub-processors and contractual data protection obligations no less protective than this DPA.
Physical security	Reliance on the physical and environmental security controls of SwarmReply's underlying cloud infrastructure providers (including their certified data centers).

Annex III

List of Sub-processors

The current list of Sub-processors is maintained at [insert URL, e.g., <https://swarmreply.com/sub-processors>] and/or is available on request. Changes are notified in accordance with Section 5.2 (for example, by email to Customer's designated contact or by an option to subscribe to updates at that location). The table below is a starting point. [Customer to verify and complete this list against SwarmReply's actual vendors and their processing locations before use — accuracy here is legally material.]

Sub-processor	Processing activity	Location
Railway Corp.	Application and backend hosting and compute	United States
Vercel Inc.	Frontend application and marketing site hosting / CDN	United States
Supabase, Inc.	Managed PostgreSQL database and object storage	[United States]
Anthropic, PBC	AI model processing for review and message generation	United States
Stripe, Inc.	Payment processing (Customer billing data)	United States
[SMS provider, e.g., Twilio Inc.]	SMS / A2P 10DLC message delivery	United States
[Email delivery provider]	Transactional and marketing email delivery	United States

[End of Data Processing Addendum.]